

Court No. - 3

Case :- WRIT - C No. - 33565 of 2023

Petitioner :- M/S P.S. Cold Storage (A Unit Of Taj Dairy Milk Pvt. Ltd.) And Another

Respondent :- The Managing Director, Dakshinanchal Vidyut Vitran Nigam Limited And 3 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C,Baleshwar Chaturvedi,Paras Nath Rai

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

As prayed, put up tomorrow i.e. 4th October, 2023 as fresh at 10.00 A.M.

Order Date :- 3.10.2023

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Through this writ petition under Article 226 Constitution of India, the petitioners have prayed for issuance of writ of certiorari for quashing the recovery/demand notice dated 14.9.2023 (Annexure No.8) issued by respondent no.2 and the order dated 15.9.2023 (Annexure No.9) passed by respondent no. 3 and has further prayed for issuance of a writ in the nature of mandamus directing the respondent no.4 to refund the amount of electricity duty paid by the petitioners w.e.f. January, 2010 till January, 2020, in terms of notification dated 21.1.2010 (Annexure No.16), as well as to correct the consumption bills since May, 2010 till December, 2010.

Learned counsel for petitioners has submitted that in the year 2010, the petitioners had set up a cold storage in rural area and the same is being run on the basis of 11KVA electricity connection provided by official respondent nos. 1 to 3, which fall under the category of HV-2 Tariff Code. Learned counsel for petitioners has pointed out that in terms of the Government Policy, the petitioners were granted rebate from time to time as per the applicable annual

rate and the petitioners deposited all the consumption charges in time.

Learned counsel for petitioners has further submitted that on various occasions, the complaints/ requests of the petitioners relating to consumption charges were not being dealt with, therefore, they approached the ombudsman, whereupon a magisterial inquiry took place on 13.8.2018, wherein it was found that the admissible rebates were not given to the petitioners. According to learned counsel, on many occasions, the bills were not issued correctly, therefore, considering the requests by the petitioners, the bills were reconsidered and reduced, which were also duly paid. Learned counsel fairly states that for the period w.e.f. year 2020 to year 2023, the concession of rebate was extended to the petitioners.

Learned counsel for petitioners has drawn the attention of the Court to the impugned notice dated 14.9.2023 as well as the impugned order dated 15.9.2023 to contend that in respect of consumption w.e.f. November, 2022 to 2023, total bill amount was corrected and a sum of Rs.3,38,786/- is stated to be due. He submits that in this regard, the petitioners have given a representation on 16.9.2023, raising a dispute regarding correctness of the demand and requested them to correct it, but the same has not been considered, therefore, they have invoked the extra ordinary writ jurisdiction of this Court for issuance of appropriate directions.

Before us, we do not have any calculation as to what was the discount which the petitioners were entitled to and what was the actual discount given to the petitioners.

At this stage, Shri P.N. Rai, learned counsel appearing for

Electricity Department has stated that if, the petitioners approach the authorities under Clause 6.5 of U.P. Electricity Supply Code, 2005 then their grievance relating to the demand raised in the impugned notice dated 14.9.2023 and the order dated 15.9.2023 would be considered.

Under such circumstances, without going further into the facts as have been stated by learned counsel for petitioners and the merits of the case, we direct that if, the petitioners raise their grievance against the impugned notice dated 14.9.2023 and the impugned order dated 15.9.2023, under Clause 6.5 of U.P. Electricity Supply Code, 2005, within a period of three weeks from today, the same be decided after hearing the petitioners within the next two months, in accordance with law.

For a period of two months or till the application of the petitioners is decided under Clause 6.5 of U.P. Electricity Supply Code, 2005, which ever is earlier, there shall be no disconnection of electricity.

With these observations, the writ petition is disposed of.

Order Date :- 4.10.2023

P.S.Parihar

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Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

Civil Misc. Correction Application No.3 of 2023 :

Heard learned counsel for the parties.

In the last line of the first paragraph of the order dated 4.10.2023, "2010" shall now be read as "**2019**".

The application is, accordingly, allowed.

Order Date :- 30.10.2023

GS

(Manoj Bajaj, J.)

(Siddhartha Varma, J.)